

		business was properly permitted and profitable), and Plaintiff's negligence claim is based on Defendants' alleged duties to disclose relevant information regarding the business truthfully. (FAC, ¶¶ 41-44, 49.) These claims are encompassed by the arbitration agreement Plaintiff additionally argues that because the other two defendants, Able Financial Corp. and Thea Mai, are not parties to the arbitration agreement and cannot be compelled to arbitrate, there is a risk of inconsistent or conflicting rulings. Code Civ. Proc., § 1281.2(d) provides in part that if "a party to the arbitration is also a party to litigation in a pending court action or special proceeding with a third party as set forth under subdivision (c), the court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action or special proceeding; (2) may order intervention or joinder as to all or only certain issues; (3) <u>may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding</u>; or (4) may stay arbitration pending the outcome of the court action or special proceeding." (Emphasis added.) The Broker Defendants filed a notice of non-opposition to the motion, stating that they do not oppose the Court staying the case while arbitration between Plaintiff and the Seller Defendants takes place. Plaintiff does not make any other arguments in her opposition. There is no showing that the agreement is unconscionable or otherwise unenforceable. Based on the foregoing, the motion to compel arbitration is granted as to Defendants Nathan Nguyen and Thuy Dao. This case is hereby stayed as to the claims between Plaintiff and Defendants Able Financial Corp. and Thea Mai. The case management conference is vacated. The Court sets a status conference on June 28, 2027 at 10:00 a.m. in Dept. C27. Defendants Nathan Nguyen and Thuy Dao shall give notice.
111	2025-01534663 Beyene vs. Pavia	1. Motion to Quash Service of Summons 2. Case Management Conference The motion and case management conference are continued to August 24, 2026 at 2:00 p.m. in Department C27.
112	2025-01515687 Horner vs. Kia America, Inc	1. Motion for Sanctions 2. Case Management Conference The motion of plaintiff Jeffrey Horner for an order imposing a monetary sanction of \$2500.00 against the attorney of record for Defendant Kia America, Inc., and compelling Defendant Kia America, Inc., to produce its lemon law policy and procedure manuals without a confidential designation is denied in its entirety. The request of Defendant for a monetary sanction of \$3350 against Plaintiff and Plaintiff's counsel is also denied.